

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MCS INDUSTRIES, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD. AND MSC
MEDITERRANEAN SHIPPING COMPANY SA, *Respondents*.

DOCKET NO. 21-05

Served: January 4, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

REMAND SCHEDULING ORDER

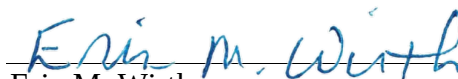
On January 3, 2024, the Commission issued an Order Partially Affirming Initial Decision on Default and Remanding for Further Proceedings (“Remand Order”) denying exceptions as to liability; affirming the January 13, 2023 Initial Decision On Default as to liability; remanding for consideration of whether the delay sanction described at 46 U.S.C. § 41302(d) may support the imposition of default here; and remanding for the submission of evidence sufficient to support the reparations Complainant MCS seeks. Remand Order at 31.

The Commission remanded only two narrow issues: (1) whether the delay sanction provision at 46 U.S.C. § 41302(d) is an additional basis to support default in this case and (2) the submission of evidence sufficient to support the claimed reparations. Remand Order at 25-30.

Regarding section 41302(d), the Commission remanded for determination “with the benefit of focused and prompt briefing from the parties, of whether 46 U.S.C. § 41302(d) provides an additional basis to support the imposition of default here.” Remand Order at 27. Therefore, the parties will be required to file briefs addressing both the factual and legal basis of a section 41302(d) finding of default. It is noted that the current Commission decision date is February 16, 2024, therefore, prompt briefing is required.

Regarding reparations, the Commission remanded “for a ‘determination of the amount of reparations’ under 46 C.F.R. § 502.65(c) based on affidavits or documentary evidence that provides adequate detail as to the damages MCS actually suffered for the violations alleged in its operative complaint.” Remand Order at 30 (citing 46 C.F.R. §§ 502.251 (Proof on award of reparation); 502.252 (Reparation statements)). Therefore, Complainant MCS Industries, Inc. (“MCS”) must submit affidavits or documentary evidence that provides adequate detail as to the damages MCS actually suffered and should address in its brief why the submission is sufficient. Respondent Mediterranean Shipping Company SA (“Mediterranean”) will be given an opportunity to respond to MCS’s submission.

Accordingly, the parties are hereby **ORDERED** to filed briefs addressing only the two issues remanded, as described above. MCS shall file its brief and evidence by January 19, 2024. Mediterranean shall file its response by February 5, 2024.

A handwritten signature in blue ink, reading "Erin M. Wirth", is written over a horizontal line.

Erin M. Wirth

Chief Administrative Law Judge